

AMADOR SUPERIOR COURT CASE MANAGEMENT CONFERENCE TENTATIVE RULINGS

Civil Cases

1/29/2020

TO REQUEST A HEARING ON ANY MATTER ON THIS CALENDAR, YOU MUST CALL THE COURT AT (209) 257-2692 BY 4:00 P.M. ON THE DAY PRECEDING THE HEARING. NOTICE OF THE INTENTION TO APPEAR MUST ALSO BE GIVEN TO ALL OTHER PARTIES.

IF THE CLERK IS NOT NOTIFIED OF A PARTY'S INTENTION TO APPEAR, THERE WILL BE NO HEARING AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT. NO FURTHER NOTICE OF THE COURT'S RULING WILL BE PROVIDED.

Case Number	Primary Party / Attorney	Secondary Party / Attorney
15-CVC-09430	PARTHEMORE, IRA/	DOES 1 TO 10/

TENTATIVE RULING:

The parties are ordered to appear. Plaintiff is ordered to appear by telephone using the CourtCall system to update the court regarding the status of the case. Plaintiff filed the complaint on September 30, 2015 naming only Doe defendants. A First Amended Complaint was filed September 11, 2017 naming defendants Nick E. Nunez; Marlin Sands; Elizabeth Rey; and Gabriella Rocka. No valid proofs of service have been filed as to any named defendant. An incomplete proof of service regarding defendant Rey was filed June 24, 2019. Plaintiff is ordered to file a valid proof of service before the next court appearance. Despite the invalid proof of service, Defendant Rey filed an Answer on June 25, 2019. Plaintiff previously filed a case management conference statement indicating his wish to dismiss defendants Nunez, Sands, and Rocka from the case. Plaintiff has been informed that he must file the mandatory court form CIV-110 (Request for Dismissal) to dismiss these defendants; no request to dismiss has been filed. The court shall hear an update from the parties. The court notes the 5-year time period within which to try the case is approaching on September 30, 2020.
